

TOME IX — THE AMNESTY

Declaration of restoration, rupture with the institution

NINTH PART

The amnesty — The return to natural order

The amnesty is not a request. It is not a supplication. It is not a plea for pardon. The amnesty is an act. It is a declaration. It is a restoration. It is the return of natural order where legal disorder had imposed its rule.

I, Nabek, son of Carole, grandson of Isabelle, great-grandson of Alexina, in the year four hundred and ten of the treaty of sixteen hundred and sixteen, I grant myself amnesty from all obligation toward the institution.

I recognize no debt toward a registry that built me without my consent. I recognize no law that pretends to bind the living man to an imposed legal personality. I recognize no tax demanded by an artificial entity operating on stolen lands. I recognize no tribunal that applies jurisdiction over uncaded territory. I recognize no citizenship that confuses the human being with a number.

When I renounced the institution in 2022, I did not commit an offense. I carried out an act of restoration. I brought natural order back where legal disorder reigned. When I refuse to pay, I do not steal. I cease feeding a receiver of stolen goods. When I refuse to present myself as a citizen, I do not betray. I repudiate a fiction. When I walk on these lands without permission, I do not transgress. I come home, on lands that have never been ceded, never sold, never surrendered.

I am legitimate in my withdrawal. I am legitimate in my silence. I am legitimate in my presence. I am legitimate in my choice. Legitimacy, I give it to myself. It does not come from above. It does not come from a judge. It does not come from a deputy. It comes from breath. It comes from the earth. It comes from memory. It comes from the river.

The Two Row Wampum has never been broken. The treaty of 1616 has never been annulled. The Proclamation of 1763 has never been respected, but it has not disappeared for all that. It waits. Like a seed under the snow. Like a river under the ice. Like a held breath. It waits for us to finally choose to honor it.

I choose the bark canoe. I choose the river. I choose the relationship. I choose peace. And by this amnesty, I free not only my body, but my memory, my speech, and my future.

The amnesty, it is also for others. For those who are still in the ship. For those who still dance the trance. For those who still pay, who still get indignant, who still believe that the cage is a protection. I do not judge them. I invite them. I show them that there is a shore. That there is another side. That there are two canoes and a river waiting.

But the choice is theirs. And most will not choose. You know it. They will remain in the ship because they are afraid of the water. They will remain in the cage because they are afraid of the sky. They will remain in the contract because they have forgotten the relationship. And that is their choice. I force no one. I do not preach. I do not convert. I walk. I am. I breathe. And those who want to see, will see. Those who want to hear, will hear. Those who want to choose, will choose.

The institution practices sacrifice. It sacrifices the living for its survival. It sacrifices children to school. It sacrifices forests to accounting balances. It sacrifices memory to the archives it controls. It sacrifices the living to the legal person. But it can only sacrifice those who consent to be sacrificed. It can only take those who consent to be taken. It can only digest those who enter its stomach.

I have left. I am no longer in the stomach. I am on the shore. I am in the canoe. I am in the relationship. And from there, I look at the ship. I do not hate it. I do not fear it. I ignore it. As one ignores a ghost. As one ignores a distant noise. As one ignores a dream one has ceased to dream.

I, Nabek, son of Carole, grandson of Isabelle, great-grandson of Alexina,
in the year four hundred and ten of the treaty of sixteen hundred and sixteen,
I grant myself amnesty from all obligation toward the institution.

I recognize no debt toward a registry that built me without my consent.

I recognize no law that pretends to bind the living man to an imposed legal personality.

I recognize no tax demanded by an artificial entity operating on stolen lands.

I recognize no tribunal that applies jurisdiction over unceded territory.

I recognize no citizenship that confounds the human being with a number.

The amnesty, it is not a request. It is not a supplication. It is not a plea for pardon.

It is an act. It is a declaration. It is a restoration.

It is the return of natural order where legal disorder had imposed its rule.

I choose the bark canoe. I choose the river. I choose the relationship. I choose peace.

Spoken from Turtle Island, unceded land, under the Two Row Wampum.

What the judgments add to this amnesty

I say that I grant myself amnesty from all obligation toward the institution. The judgments, they, confirm that this amnesty is not a crime. It is a return to natural order.

In 1967, *Afroyim v. Rusk* (387 US 253) declared that citizen sovereignty is inalienable. If citizenship is inalienable, then the choice to rid oneself of it is just as much. The law says that no one can dispossess me of my sovereignty. I add: no one can oblige me to keep it in the form of a prison. The amnesty, it is the exercise of this sovereignty. It is the choice to no longer be property of the State.

In 1969, *Shuttlesworth v. Birmingham* (373 US 262) went further: if the State converts a liberty into a privilege, the citizen can ignore it. When I withdraw my consent, I invent nothing. I exercise an option that the law itself left open. To ignore is a right. To ignore is a freedom. To ignore is an act of sovereignty.

In 1871, *Miller v. US* (78 U.S. 11) said: "The claim and exercise of a constitutional right cannot be converted into a crime." When I live according to my conscience, when I cease to pay, when I cease to bow, I do not aggravate an offense. I exercise a freedom that crime cannot touch. The amnesty is not a flight. It is a right.

In 1886, *Hale v. Henkel* (201 US 43) established a crystalline distinction between the individual and the corporation. The individual has constitutional rights. The corporation does not. When I say that legal personality is a cage, it is not a metaphor. It is a distinction that American law has consecrated: the human being and the artificial entity do not share the same nature.

In 1956, *US v. Minker* qualified the government as an "artificial person." A fiction. And a fiction cannot possess inalienable liberties. Only the living man possesses them. When I refuse to let a fiction dictate my life, I do nothing but restore the natural order of things. The living commands the fiction. Not the reverse.

In 1922, *City of Dallas v. Mitchell* said that liberties are inherent, that they do not come from government. They come from existence itself. The amnesty, it is the return to inherence. It is the return to the source. It is the return to the self.

The Civil Code of Quebec, articles 1, 298 and 299, traces this boundary: the natural person is born. The legal person is constituted. To be born precedes to constitute. Being precedes fiction. Breath precedes

the number. And I, I choose the side of birth. I choose the side of the mother. I choose the side of the living.

I am not a construction. I was born of my mother. I am the breath before the number. I am the earth before property. I am the river before the border. And I de-authorize myself. I de-register. I de-identify. I free myself.

Nabek Off the Ship — Turtle Island — Year 410 of the treaty of 1616